IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

SUIT NO. ID/11/1146/2006

BETWEEN

1 PATIENCE URHOBO
2 EMMANUEL OGHENECHUKO URHOBO (JNR)
(Substituted by order of court dated 28th November 2012)

} **CLAIMANTS**

AND

1 GOVERNOR OF LAGOS STATE
2 ATTORNEY GENERAL OF LAGOS STATE

} **DEFENDANTS**

3 CHARLES HAMPTON AND COMPANY LTD. → **DEFENDANT/ COUNTERCLAIMANT**

4 M/S. PATIENCE OLABISI ADEOSUN (NEE WILLIAMS) (Substituted by Order of Court dated 31st March 2022)
5 KEHINDE ADEGBOYEGA

} Joined by Order of Court dated 28th Nov. 2012

6 CHIEF MORUF OJUMOLA
7 HONOURABLE GANIYU SODIQ
8 ALHAJI TOAFEEK GANIYU
9 ISIAQ BASHIR TAOFEEK TAIWO
10 ROTIMI AKILO
(For themselves and members of Iluobi Family of Onigbongbo)

} Joined by Order of Court dated 15th April, 2014

11 HRM MOMOH JIMOH AJASA (Substituted by Order of Court dated 23rd October, 2017)
12 CHIEF MUKAILA ADESHINA ADEGOKE
13 ALHAJI SAHEED ANJORIN
14 PRINCE FATAI AYINLA OLORUNFUNMI
(For themselves and members of Olabisi Family of Olusosun)

} Joined by Order of Court dated 14th December, 2015

15 MR. OLUMIDE FAJORIN
(In the capacity of being don/beneficiary/next of kin of the estate of late Chief Olusoji Akin Fajorin)

} Joined by Order of Court dated 19th February, 2020

16 MR. STEPHEN OGUNBIYI

} Joined by Order of Court dated 31st March, 2022

DEFENDANTS

3RD DEFENDANT'S WITNESS STATEMENT ON OATH

I, Victor Umokoro, Male, Christian, adult and Nigerian citizen of 30 Mobolaji Bank Anthony Way, Ikeja Lagos, do make Oath and state as follows:

1. That I am an assistant supervisor with the 3rd Defendant in this suit and by virtue of which I am conversant with the facts herein deposed to.
2. That I have the consent and authority of the 3rd Defendant to depose to this witness statement on oath on its behalf.
3. That I have seen and read a copy of the amended writ of summons, statement of claim, Claimant's witness statement on oath, and the list of documents together with the documents referred to therein and state as follows:
    a. That the 3rd Defendant/Counter Claimant is the owner of all that piece of land subject of litigation in this suit measuring approximately 51.494 hectares more particularly described and shown on Survey Plan No. LS/D/LKJ 787 and vested in the 3rd Defendant vide a Certificate of Occupancy dated 17th of January, 1991 and registered as No. 42 at page 42 in volume 1991D of the Lagos State Government Land Registry Office, Ikeja, Lagos.
    b. That the Lagos State Government issued the Certificate of Occupancy referred to in paragraph 3(a) above to the 3rd Defendant/Counter Claimant. I can recognize a copy of the said Certificate of Occupancy when shown to me.
    c. The 3rd Defendant avers that it is a joint venture company comprising Ikeja Hotel Plc and the Lagos State Government through its Ibile Holdings Ltd.
    d. The 3rd Defendant avers that prior to the issuance of the said Certificate to it, the Lagos State Government had, by virtue of the Lagos State Government Notice No. 249 dated the 24th day of September, 1987 and gazetted on the 8th of October, 1987 in the Lagos State Government Official Gazette No. 36 in volume 20, made pursuant to the Land Use Act No.6 of 1978, duly revoked any existing right of occupancy or other interest in the said piece of land and had taken possession of the said land. The 3rd Defendant shall at the trial rely on the said Lagos State Government Official Gazette by which the said Lagos State Government Notice was published.
    e. The 3rd Defendant has since the issuance of the said Certificate of Occupancy on the 17th day of January, 1991 been put in undisturbed

possession of all the said piece of land by the Lagos State Government and had since remained in possession.

f. That I make this deposition in good faith believing same to be true and in accordance with the Oaths Law of Lagos State.

SWORN to at the High Court Registry, Ikeja, Lagos State.

This 7th day of December 2022.

DEPONENT

BEFORE ME

DAVIES OLUKEMI
COMMISSIONER FOR OATHS
HIGH COURT IKEJA

COMMISSIONER FOR OATHS

JUDICIARY
LAGOS STATE
N° B540968

HIGH COURT OF LAGOS STATE
Sign: Date: 7-12-2022
CASH OFFICE, IKEJA.